

Which process do you need?

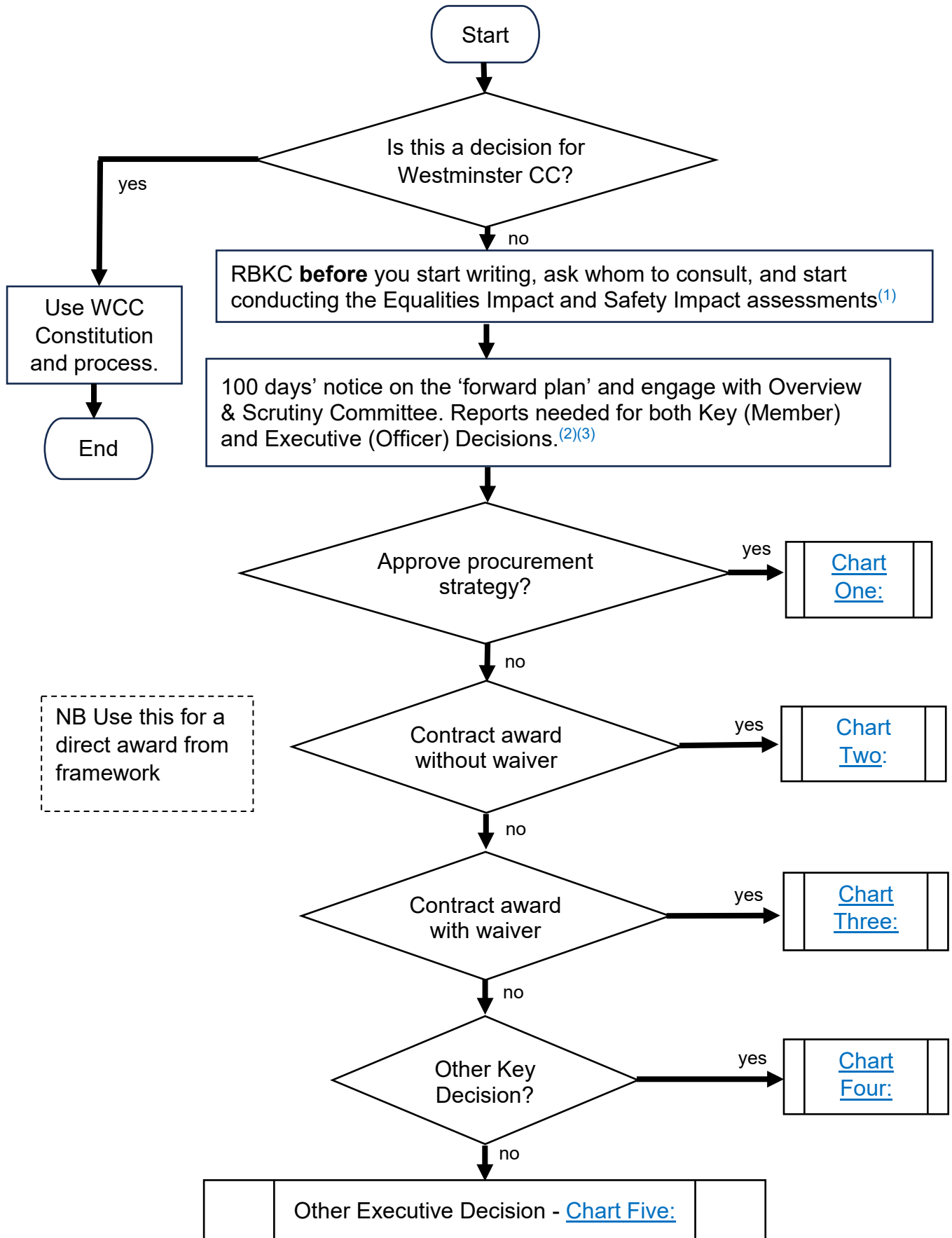


Chart One:

Key or Executive Decision – approval of Procurement Strategy

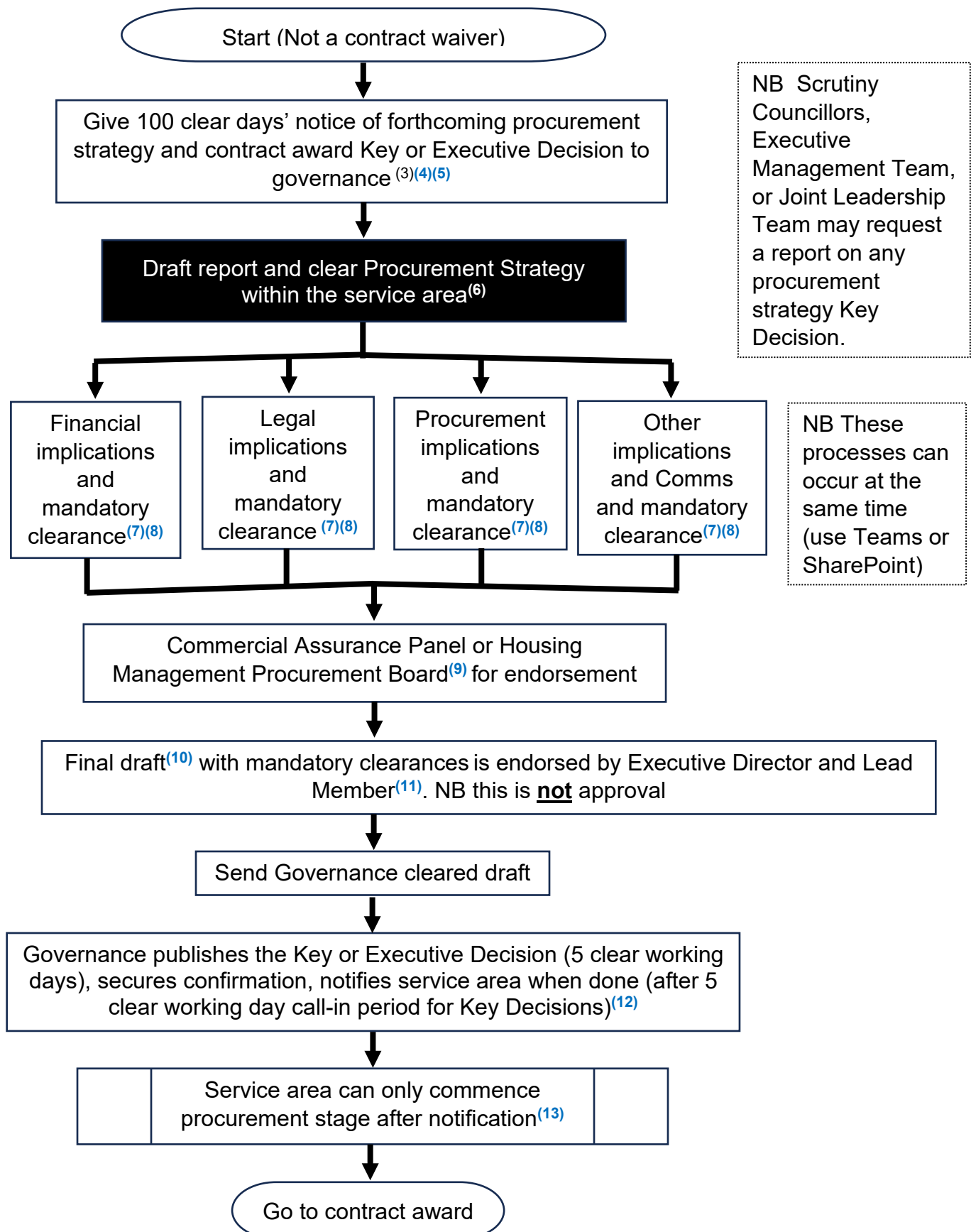


Chart Two:

Key, Executive or Director Delegated Decision – Contract Award (no waiver) or direct award from an approved framework agreement

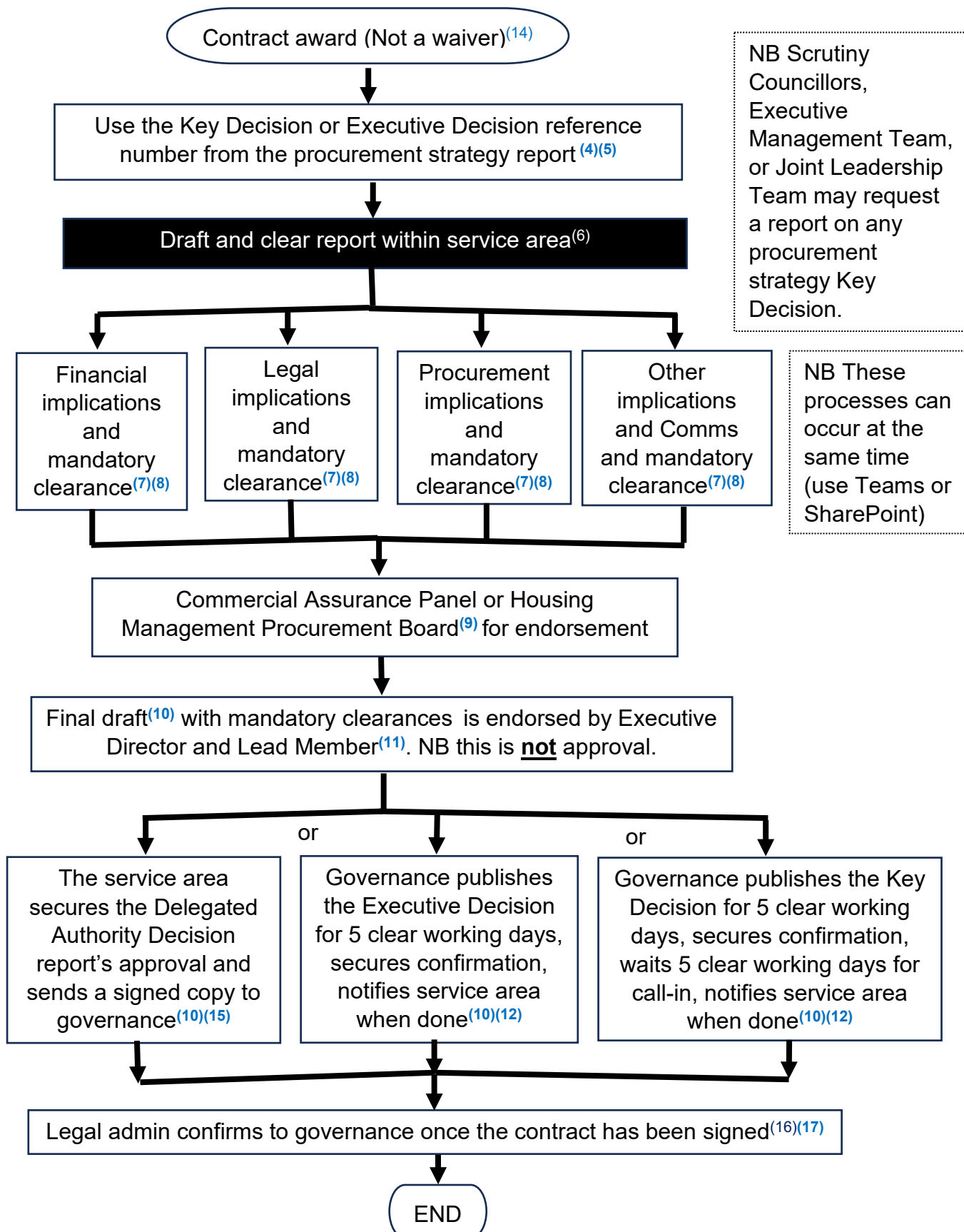


Chart Three:
Key or Executive Decision – Contract Award with waiver

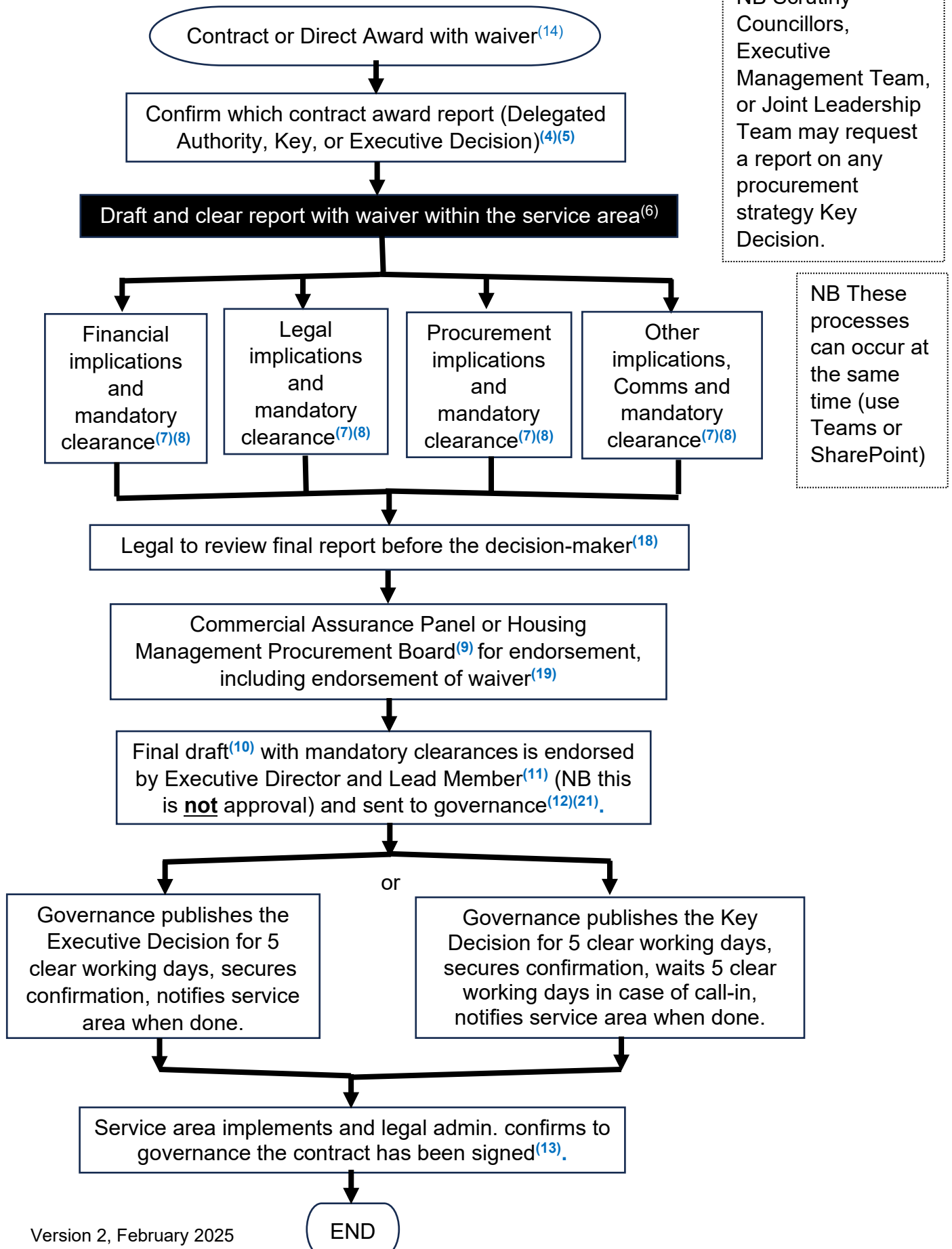


Chart Four:
Key Decision (not contract related)

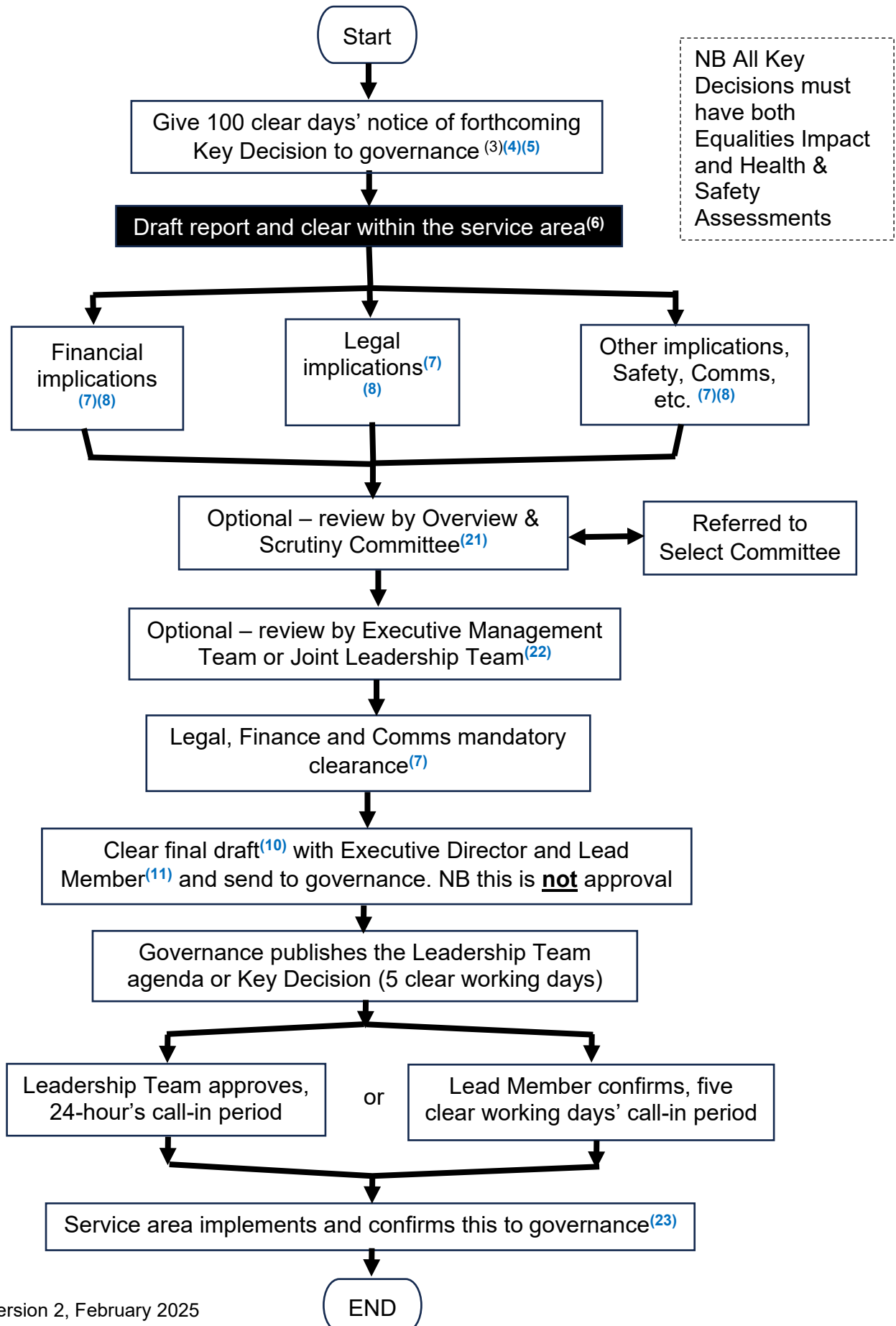
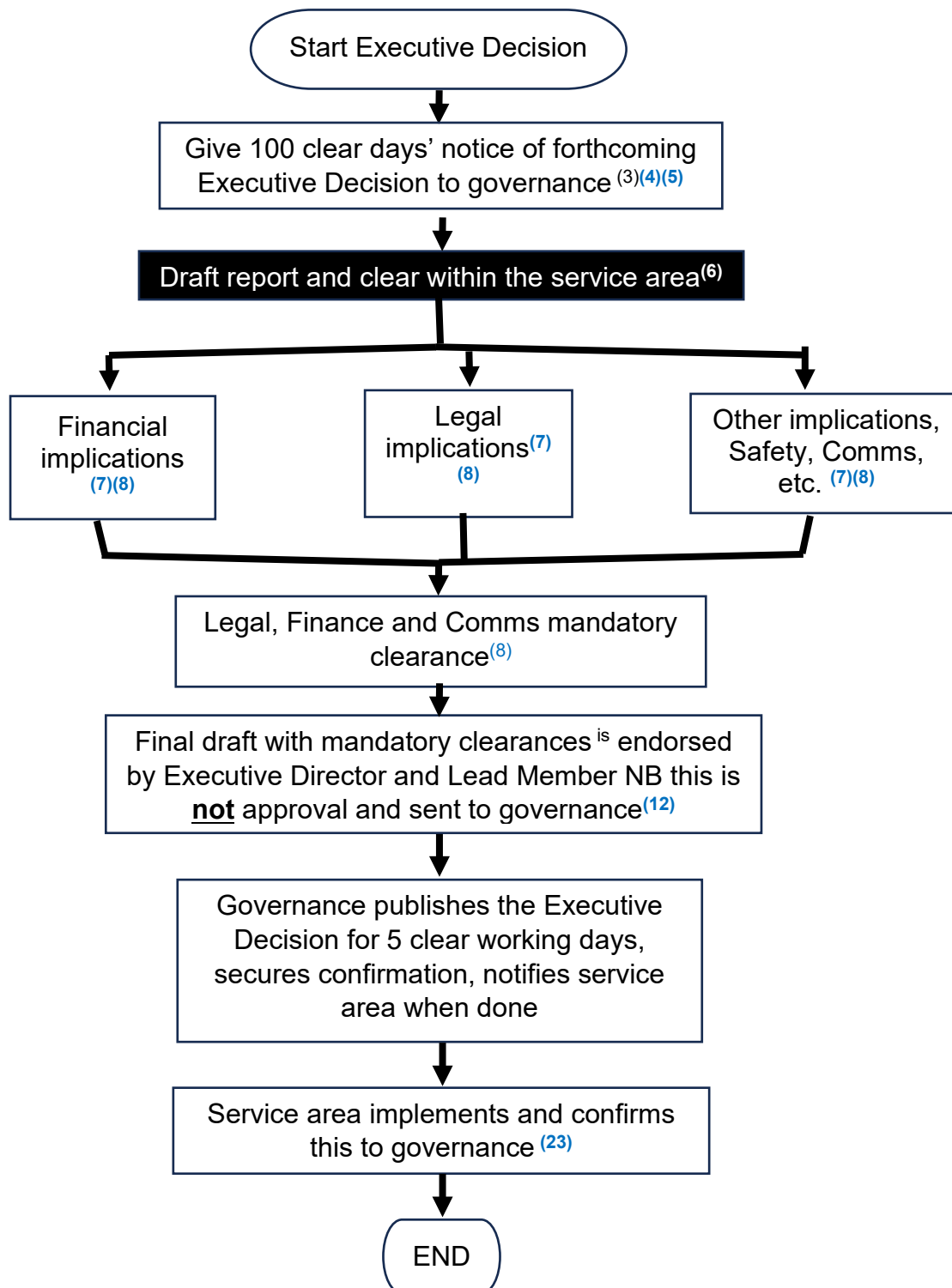


Chart Five:
Executive Decision (not contract related)



Guidance Notes for the process map

(1) The key links and contacts are:

The Charter for Public Participation – section 4, Part One, The Council and Local People in the current [Council Constitution](#).

Applying this Charter is an essential part of this Council's response to the Grenfell Tragedy and its determination to make substantial improvements in how it operates.

As part of the Council's ongoing response to the Tragedy, there is a list of prohibited suppliers here: [Updating restrictions on the use of certain contractors and products KD1010591](#). This applies to sub-contractors as well as contractors.

Consultation: [Carrying out a consultation - Toolkit and Good Practice Guide](#) or consult@rbkc.gov.uk

Equalities: [Welcome to the Equality, Diversity & Inclusion Hub](#) or mandeep.kaurbains@rbkc.gov.uk

Safety Impact Assessment: [Safety Impact Assessments](#) or email CorporateHealthandSafety@rbkc.gov.uk

NB this covers the residents and other individuals' safety as part of the Council's response to the Grenfell Inquiry reports.

Data Protection Impact Assessment: [Data Privacy Impact Assessment - Template.docx](#)

(2) Submit notice of forthcoming decisions proforma (Forward Plan) 100 days before the decision is due (corporate best practice) and no later than 28 clear calendar days before the decision must be made (statutory deadline). This notice will cover both the procurement strategy and the contract award.

- a. A key decision is:
 - i. A contract valued at £1.5m or more (excluding VAT).
 - ii. Income or expenditure of £500,000 or more.
 - iii. An individual grant payment of £50,000 or more.
- b. An executive decision is a contract, income or expenditure of £100,000 or more but less than the Key Decision thresholds.
- c. There are exceptions to these rules. please see paragraph 1.21, Part Four – The Executive Section One – The Leadership Team and Executive Authority of the current [Council Constitution](#). This paragraph also clarifies what a 'significant' impact might be.
- d. Please send the completed proforma to governance@rbkc.gov.uk.

Key and Executive Decisions process maps

- (3) If you need a decision urgently, please email governance@rbkc.gov.uk to discuss the process. You will need good explanations about why it must be made and why it was not possible to schedule the decision so that it would be taken in the normal timescales.
 - a. Email scrutiny@rbkc.gov.uk to contact the Scrutiny team.
 - b. All procurement-related decisions are likely to be part exempt, please remember to request this – the most likely reason is ‘Part open, part exempt by virtue of the fact the report contains or is likely to contain information relating to the financial or business affairs of a particular person (including the authority holding that information) under paragraph 3 of Schedule 12A of the Local Government Act 1972 and in all the circumstances of the case, the public interest in maintaining the exemption outweighs the public interest in disclosing the information.’
 - c. The Monitoring Officer or her authorised representative must approve requests to make information exempt. Governance will liaise with her if necessary. NB only the relevant information is not for publication, not a whole report (except in exceptional circumstances).
 - d. The issue (Forward Plan item) is listed as ‘For Determination.’
- (4) Ensure you have the Lead Member and Executive Director’s agreement to add the item to the plan. (You must confirm when you obtained this on the proforma.)
- (5) You should use the same Key or Executive Decision number for both the Procurement Strategy and the Contract Award. This will link both decisions in one place on the website to make it easier for the public or councillors to follow the decision-making.
- (6) You can find all templates here: [Forthcoming Decisions \(previously 'the Forward Plan'\) and Reports](#)
- (7) These tasks should be undertaken in parallel. Use a SharePoint or Teams site to ensure there is only one live version of the document.
- (8) Allow ten working days if possible, or at least five clear working days as a minimum, for clearance by Contract legal services. If the matter is urgent, please speak to the relevant lawyer as soon as possible.
- (9) Only contracts £250,000 or greater will go to Commercial Assurance Panel or an equivalent board.

Procurement strategy internal endorsement:

- a. Contact Khadija Sheik to book the procurement strategy onto a Commercial Assurance Panel agenda. procurement@rbkc.gov.uk or Khadija.Sheik@rbkc.gov.uk
- b. To book onto the Housing Management Procurement Board contact:

Key and Executive Decisions process maps

hm-procurement@rbkc.gov.uk

(10) All Key Decisions must have

- a. an Equalities Impact Assessment. This should be started at the beginning of the process and updated as you proceed with the draft. You can find the Equalities Impact Assessment proforma and further information here: [Welcome to the Equality, Diversity & Inclusion Hub](#). Contact mandeep.kaurbains@rbkc.gov.uk for any assistance.
- b. A Health and Safety Assessment: contact TBC
- c. Where appropriate, a Data Protection Impact Assessment: [Data Privacy Impact Assessment - Template.docx \(sharepoint.com\)](#)

(11) All Key Decisions must be endorsed by the Lead Member before being sent to governance for publication and the start of the confirmation process. Any response by the Lead Member or strategic advisor saying 'agree' or 'approved' **is not** confirmation.

(12) All Key and Executive Decisions must be sent to governance@rbkc.gov.uk to secure approval.

- a. Procurement strategies of £1.5m or more require a Key Decision.
- b. Those valued at £100,000 and up to the Key Decision threshold need an Executive Decision.
- c. Those under £100,000 need a Delegated Authority Decision report.
- d. Contract awards or call-offs from frameworks should be through a Delegated Authority Decision report where authority is delegated to an Executive Director.
- e. An Executive Decision should be following consultation with the Lead Member to secure her or his endorsement.
- f. Both Key and Executive Decisions are published for five clear working days before a decision can be confirmed. This means you exclude the day the report is published, weekends and public holidays, and the day it can be signed.
- g. Executive decisions can be implemented the day they are confirmed.
- h. Key Decisions can only be implemented after five clear working days' call-in period have expired for individual Lead Member decisions or after 17.00 on the day after a Leadership Team meeting. Call-in is a statutory process which means that the Overview & Scrutiny Committee can delay the implementation until a further report has been submitted to that committee.
- i. In both cases, there must be a decision sheet that was processed by governance services for the decision to be valid.

Key and Executive Decisions process maps

- (13) The service area can proceed with applying the procurement strategy once the signed confirmation sheet has been received and published by @governance and an email authorising you to proceed has been sent by that team. The issue is changed from 'for determination' to 'awaiting implementation' until the contract is awarded.
- (14) There are three options for the contract award report. NB on updated advice of legal colleagues, all costs are exclusive of VAT.
 - a. If the procurement strategy was approved via a Key Decision and authority to award was delegated to an Executive Director, use a Delegated Authority Decision report.
 - b. If the procurement strategy was approved via an Executive Decision, again, use a Delegated Authority Decision report.
 - c. In all other cases, apply the usual Key and Executive Decisions thresholds.
- (15) The signed Delegated Authority Decision report must be sent to governance as it is published alongside the procurement strategy as a related issue.
- (16) The services area informs governance once the recommendation has been implemented or the contract is signed, then the issue is set to 'implemented' on the internet. Until then it will remain at 'awaiting implementation.' Legal admin will notify governance when contracts are signed.
- (17) If the decision cannot be implemented, for example the supplier has raised the prices and the contract cannot be signed, the Head of Service or Director must email governance to say that the decision will not be implemented. The status is changed to 'abandoned/withdrawn.'
- (18) Send the final version of any contract decision with waiver to legalcontractsRBKCWCC@rbkc.gov.uk
- (19) Waivers are a breach of the Council's contract regulations unless the strict conditions to obtain a waiver apply.
 - a. For contracts with a total value between £25,000 and £100,000. The Director of Audit, Fraud, Risk and Insurance must endorse the waiver.
 - b. If the waiver is requested by the Executive Director of Resources, another Executive Director must approve the Waiver.
 - c. If the contract is between £500,000 and £1.5million the relevant Lead Member must be consulted before the Executive Director can agree via executive decision. If the contract is £1.5 million or more then the Lead Member or the Leadership Team must agree via a key decision.
- (20) If the aggregate value of the original contract (including all extensions and variations) and the proposed waiver exceed £1.5m approval may be required from the Lead Member, or Leadership Team, as appropriate.

Key and Executive Decisions process maps

(21) Reports to Overview & Scrutiny Committee do not have to be reviewed by either Executive Management Team or Joint Leadership Team. The latter may benefit from having non-executive Councillors' comments.

(22) Neither Executive Management Team nor Joint Leadership Team are formal bodies and you must not refer to them as having reviewed, endorsed or cleared proposals in your final report.

(23) Implemented means:

- a. For a strategy – the moment it is approved.
- b. For a policy – once decisions are made using it, for example, a housing allocations policy.
- c. For an item referred to Full Council, for example the budget, once Full Council has approved it.